

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

August 17, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Williams v. Sevilla Homeowners Association 2021-01183871	The motion by Steven M. Levine and the Judge Law Firm, ALC, to be relieved as counsel for plaintiffs H. Newell Williams, Jr. and Kimberly Clark-Williams is GRANTED, effective upon filing proof of service of the signed order on the clients. (Cal. Rules of Court, Rule 3.1362 [authorizing motion].) Moving counsel are ordered to comply with the Rules of Professional Conduct concerning transitioning information and files to former clients. Given the upcoming Phase 2 trial date, moving parties are ordered to return files to the client no later than August 21, 2026. (CA Rules of Prof. Conduct, Rule 1.16(e)(1) ["Upon the termination of a representation ... subject to any applicable protective order, non-disclosure agreement, statute or regulation, the lawyer promptly shall release to the client, at the request of the client, all client materials and property"].) The court sets a hearing for September 14, 2026 at 2:00 p.m. in Department C28 to determine how the Phase I rulings will be addressed at the next phase of the trial. The parties are allowed to file additional briefing as follows: Defendants' further brief (limited to 10 pages) shall be filed on or before August 28, 2026. Plaintiffs' further brief (limited to 10 pages) shall be filed September 4, 2026. No further briefing on this issue is permitted. Moving counsel shall give notice of this ruling. #51 Attorneys Kristen Tojo, Nicol Hajjar and Wilshire Law Firm's motion to be relieved as counsel for plaintiff Carla Luna is GRANTED. This order shall become effective upon the filing of the proof of service of the executed order on plaintiff. Moving counsel shall give notice of this ruling.
51.	Luna v. Amphitrite Hotel, LLC 2025-01495217	Attorneys Kristen Tojo, Nicol Hajjar and Wilshire Law Firm's motion to be relieved as counsel for plaintiff Carla Luna is GRANTED. This order shall become effective upon the filing of the proof of service of the executed order on plaintiff. Moving counsel shall give notice of this ruling.
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54.	Jones v. Myers 2026-015404467	The demurrer by defendant Susanne Myre (erroneously sued as Susanne Myers) to plaintiff Desiree Jones' Complaint is OVERRULED as to the 1st cause of action for defamation, and on grounds of uncertainty, and SUSTAINED, with limited leave to amend, as to the 3rd cause of action for "Interference with Legal Process and Obstruction of Mail." <u>Uncertainty.</u> Moving party cites Code Civ. Proc., § 430.10, subd. (f), in the notice of demurrer, but the moving papers do not address this ground. The Complaint is not so uncertain that defendant cannot determine the nature of the claims alleged, or how to respond. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) <u>1st cause of action: defamation.</u> This cause of action alleges sufficient facts. (Code Civ. Proc., § 430.10, subd. (e); <i>Taus v. Loftus</i> (2007) 40 Cal.4th 683, 720 [elements]; Complaint at 1:25-2:2 ["On or about December 2nd 2020, Defendant made false, unprivileged statements to the HOA Board and neighbors, including ... [t]hat Plaintiff committed 'mortgage fraud,'" which statements "are defamatory per se as they falsely charge Plaintiff with a crime and tend directly to injure Plaintiff in her profession"].) While moving party contends this action is time-barred, the demurrer fails to address the delayed discovery allegations, which appear sufficient. (Complaint at 3:16-27; <i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808 ["In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.'"]) Whether or not plaintiff in fact committed mortgage fraud may be proven true or false, and thus is not inactionable opinion, as argued by moving party. (See <i>Gallagher v. Connell</i> (2004) 123 Cal.App.4th 1260, 1271 ["The essential difference between a statement of fact and a statement of opinion is that a statement of fact implies a provably false factual assertion while a statement of opinion does not"].) <u>3rd cause of action: "Interference with Legal Process and Obstruction of Mail."</u>

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		This cause of action fails to allege sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) There is no private right of action for violation of 18 U.S.C. § 1701. (<i>Woods v. McGuire</i> (6th Cir. 1992) 954 F.2d 388, 391.) Limited leave to amend is granted, to allege some other common law tort, if available. (See Opposition at 2:24-3:5.) The court observes that the facts alleged could potentially support claims for some other common law tort. (See <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer if it states a cause of action on any theory].) However, as currently alleged, there are insufficient facts pled to show the nature of the tort, and how plaintiff was damaged by defendant's conduct. Plaintiff shall file a First Amended Complaint, if at all, within 15 days. The case management conference is continued to February 1, 2027 at 9:00 a.m. in Department C28. Moving party shall give notice of this ruling.
55.	Rume Medical Group, Inc. v. Aetna Health of California, Inc. 2026-01550393	Defendants Aetna Health of California, Inc.; Aetna Life Insurance Co.; Aetna Better Health of California, Inc.; Aetna Health and Life Insurance Co.'s demurrer to Plaintiff Rume Medical Group, Inc.'s Complaint is SUSTAINED WITHOUT LEAVE TO AMEND as to Cause of Action 9 and otherwise OVERRULED. (Code Civ. Proc. §430.10, subd. (e).) Defendants shall file an Answer to the Complaint within 20 days of this ruling. <u>General Legal Standard on Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of

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		judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) <u>COA 9: Violation of Health & Saf. Code §1342.2 and Ins. Code §10110.7</u> Defendants argue this cause of action fails because there is no private right to action to enforce violations of H&C Code §1342.2, nor Ins. Code §10110.7. Defendants are correct. H&S Code §1342.2 is part of the Knox-Keene Healthcare Services Plan Act, which expressly authorizes The California Department of Managed Health Care to enforce its provisions and does not include an express private right of action. (See <i>Blue Cross of California, Inc. v. Superior Court</i> (2009) 180 Cal.App.4th 1237, 1250.) With respect to Ins. Code §10110.7, "neither the insurance code nor regulations adopted under its authority provide a private right of action." (<i>Rattan v. United Services Automobile Association</i> (2000) 84 Cal.App.4th 715, 724.) Since there is no basis for a cause of action that directly enforces violations of these provisions, the demurrer is SUSTAINED. The court finds that leave to amend would be futile, as there is clearly no private right of action contemplated to enforce the Knox-Keene Act or the Insurance Code. Accordingly, leave to amend is denied. <u>COA 1: Violations of Bus. & Prof. Code §17200</u> Bus. & Prof. Code §17200 prohibits "unfair competition" which means "any unlawful, unfair or fraudulent business act or practice". Bus. & Prof. Code §17200, et seq. ("UCL"). "A claim made under section 17200 is not confined to anticompetitive business practices, but is also directed toward the public's right to protection from fraud, deceit, and unlawful conduct. Thus, California courts have consistently interpreted the language of section 17200 broadly. [S]ection 17200 definition is disjunctive, the statute is violated where a defendant's act or practice is unlawful, unfair, fraudulent or in violation of section 17200." (<i>Wilson v. Hynek</i> (2012) 207 Cal.App.4th 999, 1007) (internal citations and quotation marks omitted).) Additionally, a cause of action under the UCL must be pleaded with reasonable particularity, "which is a more lenient pleading standard than is applied to common law fraud claims." (See <i>Gutierrez v. Carmax Auto Superstores California</i>.)

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		To state a cause of action for violation of Bus. & Prof. Code §17200, a private party plaintiff must allege (1) an injury in fact; (2) a loss of money and/or property; (3) as a result of; (4) an unfair, unlawful or fraudulent business practice. (See <i>Kwikset Corp. v. Superior Court</i> (51 Cal.4th 310, 322-327.) Here, the Complaint sufficiently alleges these elements. Plaintiffs allege they have suffered an injury in fact because they have expended resources providing Defendants' members with COVID-19 testing and have lost money and/or property when Defendants refused to reimburse Plaintiff the reasonable value of these services. Plaintiff has alleged that the failure to reimburse is the result of an unlawful business practice – the failure to comply with the requirements of Health & Saf Code §1342.2 and Ins. Code §10110.7. Defendant argues that this claim fails as a matter of law because Plaintiff has no remedy under the UCL. Defendants argue that the monetary relief sought here is not restitutionary because the money Defendants received in the form of premium payments came from their subscribers rather than from Plaintiff. Thus, Defendants reason that the prohibition on nonrestitutionary disgorgement under the UCL stated in <i>Korea Supply Company v. Lockheed Martin Corporation</i> (2003) 29 Cal.4th 1134, 1152. But the relief sought here is not a nonrestitutionary disgorgement of profits, such as what was before the court in <i>Korea Supply</i>. Rather, the disgorgement here would be purely restitutionary, as the disgorgement would only be the money obtained as a result of the unfair business practice of unlawfully withholding reimbursement of the reasonable value of the services Plaintiff provided to Defendants' subscribers. A remedy providing that a healthcare provider be reimbursed the reasonable value for services provided to a subscriber has been recognized as restitution within the meaning of the UCL. (See <i>Long Beach Memorial v. Kaiser Foundation Health Plan, Inc.</i> (2021) 71 Cal.App.5th 323, 344 [holding that it was error for court to dismiss a UCL restitution claim for reimbursement under Knox-Keene, but finding the error harmless because the same relief could be obtained through a quantum meruit claim that was not summarily adjudicated].) Accordingly, the demurrer to this cause of action is OVERRULED. In light of the findings above regarding restitution, the court need not reach Defendants' arguments concerning the availability of injunctive relief for purposes of assessing the Complaint against general demurrer.

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		<u>COA 6: IMPLIED IN LAW CONTRACT</u> Defendants argue that a demurrer lies as to this cause of action because this cause of action seeks to directly enforce Health and Safety Code §1342.2 and Insurance Code §10110.7, which do not provide a private right of action. "The existence of a contract implied in law under a <i>quantum valebant</i> count depends upon whether the defendant 'has used for its benefit and property of (plaintiff) in such manner and under such circumstances that the law will impose a duty of compensation therefor.'" (<i>Weitzenkorn v. Lesser</i> (1953) 40 Cal.2d 778, 794.) Even if there is no private right to directly enforce Health and Safety Code §1342.2 and Insurance Code §10110.7, these provisions do not preclude a private action based upon their violation under another statutory (UCL) or common law theory. (See, e.g. <i>Bell v. Blue Cross of California</i> (2005) 131 Cal.App.4th 211 [finding that UCL unlawful and quantum meruit claims could be based upon violation of Knox-Keene Healthcare Services Plan Act notwithstanding the lack of private right to enforce violation of the same]; see also Health & Saf Code §1371.25 ["Nothing in this section shall preclude a finding of liability on the part of a plan, any entity contracting with a plan, or a provider, based on the doctrines of equitable indemnity, comparative negligence, contribution, or other statutory or common law bases for liability."].) Here, the Complaint asserts Defendants had an implied contractual duty to reimburse Plaintiff for the COVID-19 testing provided to Defendants' subscribers arises out of the duties created under Health & Saf Code §1342.2 and Ins. Code §10110.7. Defendants have used Plaintiff's services for their benefit by permitting their subscribers to obtain healthcare services from Plaintiff and the law has established an explicit duty for Defendants to reimburse Plaintiff for the reasonable value of such services. Accordingly, the demurrer to this cause of action is OVERRULED. <u>COA 7: IMPLIED IN FACT CONTRACT</u> "As to the basic elements, there is no difference between an express and implied contract. While an express contract is defined as one, the terms of which are stated in words (Civ. Code, § 1620), an implied contract is an agreement, the existence and terms of which are manifested by conduct (Civ. Code, § 1621). ... [B]oth types of contracts are identical in

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		that they require a meeting of minds or an agreement [citation]. Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established." (<i>Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan</i> (2022) 80 Cal.App.5th 794, 815.) Here, Plaintiff alleges that a contractual relationship had been formed through conduct. Plaintiff provided services to Defendants' subscribers with the expectation that Defendants would reimburse Plaintiff for the reasonable value of the services. Defendants permitted their subscribers to obtain services from Plaintiff. Defendants agreed to reimburse Plaintiff for some, but not all, of the services rendered. This is sufficient for the purposes of a challenge to the pleadings. Accordingly, the demurrer to this cause of action is OVERRULED. <u>COA 8: QUANTUM MERUIT</u> The elements of a cause of action for quantum meruit are: (1) the plaintiff acted pursuant to an express or implied request for services by the defendant, and (2) the services rendered benefited the defendant. (<i>Day v. Alta Bates Medical Center</i> (2002) 98 Cal.App.4th 243, 248.) Quantum meruit claims by a healthcare provider against an insurer for services rendered to an insurer's subscribers are recognized in California. (See, e.g. <i>Long Beach Memorial Medical Center v. Kaiser Foundation Health Plan, Inc.</i> (2021) 71 Cal.App.5th 323, 335 ["If a hospital or other medical provider believes that the amount of reimbursement it has received from a health plan is below the "reasonable and customary value" of the emergency services it has provided, the hospital or provider may assert a quantum meruit claim against the plan to recover the shortfall."].) The Complaint sufficiently alleges a quantum meruit cause of action. The facts here align well with the facts of <i>Long Beach Memorial</i>. Accordingly, the demurrer to this cause of action is OVERRULED. <u>COA 2-5: Common Counts</u> "A common count claim broadly applies wherever one person has received money which belongs to another, and which in equity and good conscience, or in other words, in justice and

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		right, should be returned" (<i>Rubinstein v. Fakheri</i> (2020) 49 Cal.App.4th 797, 809-811.) Common counts are "a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness..." (<i>Korchemny v. Piterman</i> (2021) 68 Cal.App.5th 1032, 1047.) All that must be alleged to state a cause of action for a common count is (1) statement of indebtedness; (2) consideration (services rendered, money received, etc.); and (3) nonpayment. (<i>Farmers Ins. Exchange v. Zerlin</i> (1997) 53 Cal.App.4th 445, 460.) Common Counts are generally not subject to demurrer. (<i>Id.</i>) However, "[w]hen a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable." (<i>Korchemny</i>, supra. 68 Cal.App.5th at 1048.) In sum, common counts may be pleaded entirely with legal conclusions, and thus are not appropriately challenged on demurrer except to the extent the common counts are derivative of an underlying claim that is found to be legally insufficient. Here, since the demurrer is OVERRULED as to the quantum meruit, implied contract, and UCL claims, the demurrer must also be OVERRULED as to each of the common counts. The case management conference is continued to February 1, 2027 at 9:00 a.m. in Department C28. Plaintiff shall provide notice of this ruling.
56.	Gallagher-Renta v. Superior Loan Servicing, LLC 2026-01569564	Defendant Superior Loan Servicing, LLC's ("SLS") Demurrer to the Complaint is SUSTAINED. Defendant's Request for Judicial Notice is GRANTED as to Exhibits 1-4. (Evid. Code § 452(c).) First Cause of Action – Violation of HBOR Plaintiffs allege violations of Sections 2923.5 and 2923.55 alleging SLS: (1) failed to comply with contact Plaintiffs in a "meaningful or legally complaint manner" to assess their financial circumstances; (2) failed to provide accurate information regarding how to make payments; and (3) because of the lack of meaningful contact prior to the notice of

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		default the affidavit on the notice of default is deficient. (Complaint, ¶¶27-30). Civil Code section 2923.5 precludes a trustee or mortgage servicer from recording a notice of default until 30 days after the loan servicer has made initial contact with the borrower to assess the borrower’s financial situation and explore options for avoiding foreclosures, or has satisfied the due diligence requirements of the statute. (Civ. Code § 2923.5(a)(1).) Due diligence requires sending a letter by first class mail, making three attempts to contact the borrower by telephone, and sending a certified letter if no response is received within two weeks of the telephone attempts. (Civ. Code § 2923.5(e).) Civil Code section 2923.55 is similar but not identical to Section 2923.5. Application of Sections 2923.5 or 2923.55 depends on the entity’s number of foreclosures in a reporting period. (See Civ. Code §§ 2923.5(g); 2923.55(g).) Section 2923.5 applies to entities with more than 175 foreclosures in a reporting period while section 2923.55 applies to entities that had fewer than 175 foreclosures in a reporting period. (Civ. Code § 2924.18(c).) Relief Afforded Defendants assert that the only remedy afforded by Section 2923.5 is a one-time postponement of the foreclosure sale before it happens. (<i>Mabry v. Superior Court</i> (2010) 185 Cal.App.4th 208, 213-214.) Here, the trustee’s sale occurred on May 21, 2026, and the Trustee’s Deed Upon Sale conveying the Property to the foreclosing beneficiary, Structured Capital 1 LLC, was recorded on June 9, 2026. (RJN, Exh. 4.) Plaintiffs filed this Complaint on May 14, 2026, one week before that sale; the sale has since closed, and title has passed to a third party. <i>Mabry</i>, however, was decided pre-HBOR. Under the HBOR violations of Sections 2923.5 and 29.23.55 are governed by Civil Code sections 2924.12 and 2924.19, which provide two distinctive remedies. Before the trustee’s deed upon sale is recorded, a borrower may bring an action for injunctive relief to enjoin a material violation of section 2923.5. (Civ. Code. §§ 2924.12(a), 2924.19(a).) After a trustee’s deed upon sale has been recorded, a mortgage service is now liable to a borrower for actual economic damages resulting from a material violation of Sections 2923.5 and 2923.55 that was not corrected before the sale. (Civ. Code §§ 2924.12(b),

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		2924.19(b).) Therefore, Plaintiffs may be entitled to economic damages even though the deed upon sale has been recorded. Even if monetary damages are available, they are only available for a “material” violation. In this case, Plaintiffs have failed to plead a causal connection between their damages and a material violation of the statutes. Accordingly the demurrer to the first cause of action is SUSTAINED on this ground as Plaintiffs have failed to adequately plead they are entitled to the relief sought. Contact with Defendants Defendant contend Plaintiffs have failed to allege a violation of Sections 2923.5 and 2923.55. Sections 2923.5 and 2923.55 are satisfied by contact or due diligence attempts, and the Complaint describes the repeated back and forth communications with Defendant. Plaintiffs merely allege Defendants did not contact them in a “meaningful or legally compliant manner.” (Complaint, ¶ 28.) But “meaningful” is not a requirement under the operative statutes. The Complaint lacks sufficient allegations regarding how Defendant violated Sections 2923.5 and 2923.55. Although the Complaint states Defendant failed to provide accurate information regarding their loan, thereby undermining Plaintiffs’ ability to avoid default, there are no allegations regarding when Defendant provided this inaccurate information. Sections 2923.5 and 2923.55 only require a mortgage servicer to make contact or act with due diligence in attempting to contact the borrower prior to foreclosure. There is no mention of liability of the mortgage servicer for failure to provide accurate information to the borrower. The statutes’ primary obligation is procedural—ensuring contact occurs—rather than imposing a substantive duty regarding the accuracy of information provided during that contact. Accordingly, the demurrer to the first cause of action is SUSTAINED on the grounds that Plaintiffs have failed to adequately allege Defendants non-compliance with Sections 2923.5 and 2923.55. Sections 2923.5 and 2923.55 Cannot Both Apply Sections 2923.5 and 2923.55 apply to different type of entities. Section 2923.5 applies only to entities described in § 2924.18(b). Section 2923.55 imposes parallel requirements for certain mortgage servicers, with the distinction between the statutes’ applicability determined by reference to §

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		2924.18(b). Sections 2923.5 and 2923.55 are mutually exclusive statutes that cannot both apply to the same servicer. Plaintiffs must identify which statute applies to Defendant. Accordingly, the demurrer to the first cause of action is SUSTAINED on this ground. Application of HBOR Sections 2923.5 and 2923.55 apply only to mortgages or deeds of trust described in Civil Code section 2924.15. Section 2924.15(b) defines "owner-occupied" to mean that "the property is the principal residence of the borrower and is security for a loan made for personal, family, or household purposes." Plaintiffs have only pleaded the Property is a single family dwelling that is "owner occupied" but fail to plead the loan was made for consumer purposes. Therefore, Plaintiffs have failed to plead the HBOR applies. Accordingly, the demurrer is SUSTAINED on this ground. Second Cause of Action – Negligence The Complaint alleges Defendant owed Plaintiffs a duty to exercise reasonable care in the servicing and administration of Plaintiffs' mortgage loan. (Complaint, ¶ 35.) To plead a cause of action for negligence a plaintiff must allege facts showing: "(1) a legal duty of care toward the plaintiff; (2) a breach of that duty; (3) legal causation; and (4) damages." (<i>Century Surety Co. v. Crosby Insurance, Inc.</i> (2004) 124 Cal.App.4th 116, 127.) Generally, a mortgage servicer does not owe a duty of care to a borrower in negligence. (See <i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 927 [holding that .) "As a general rule, a financial institution owes no duty of care to a borrower when the institution's involvement in the loan transaction does not exceed the scope of its conventional role as a mere lender of money." (<i>Lueras v. BAC Home Loans Servicing, LP</i> (2013) 221 Cal.App.4th 49, 63 [cleaned-up].) Moreover, the economic loss rule bars negligence claims against mortgage servicers when those claims arise from the contractual relationship between the parties and are not independent of the underlying mortgage agreement. (<i>Sheen</i>, supra, 924-925.)

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		Here, there are no allegations in the Complaint that Defendant exceeded the scope of its role as a lender of money. Therefore, Plaintiffs have not plead the existence of a duty. Additionally, Plaintiffs have not asserted a claim that is independent of the original mortgage agreement and its processing of the loan. Thus, their claims are barred by the economic loss rule. Accordingly, the demurrer to the second cause of action is SUSTAINED. Third Cause of Action – Breach of Contract “To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage.” (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal. App. 4th 299, 307.) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Ibid.) Defendant asserts that only plaintiff Alexis Lorie Gallagher-Renta executed the Deed to Trust and Note securing the Property. Plaintiff Gary Renta is not a borrower or signatory to any of the loan documents. (RJN, Exh. 1.) The Complaint does not allege any legal theory that gives Mr. Renta standing to sue for breach of contract. Moreover, the Loan Documents identify the lender as Structured Capital 1 LLC and the borrower as Mrs. Gallagher-Renta. Defendant is identified as the “Trustee” and loan servicer. The Complaint fails to allege how there exists contractual privity between Plaintiffs and Defendant. Plaintiffs also fail to identify the specific provisions of the loan that were breached by Defendant, and no copy of the Loan Agreement is attached to the Complaint. For all the foregoing reasons, the demurrer to the third cause of action is SUSTAINED. Fourth Cause of Action - Wrongful Foreclosure “To obtain the equitable set aside of a trustee’s sale or maintain a wrongful foreclosure claim, a plaintiff must allege that (1) the defendants caused an illegal, fraudulent, or willfully oppressive sale of the property pursuant to a power of sale in a mortgage or deed of trust; (2) the plaintiff suffered

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		prejudice or harm; and (3) the plaintiff tendered the amount of the secured indebtedness or was excused from tendering.” (<i>Chavez v. Indymac Mortgage Services</i> (2013) 219 Cal.App.4th 1052, 1062.) “Because the action is in equity, a defaulted borrower who seeks to set aside a trustee's sale is required to do equity before the court will exercise its equitable powers. [Citation.] Consequently, as a condition precedent to an action by the borrower to set aside the trustee's sale on the ground that the sale is voidable because of irregularities in the sale notice or procedure, the borrower must offer to pay the full amount of the debt for which the property was security.” (<i>Lona v. Citibank, N.A.</i> (2011) 202 Cal.App.4th 89, 112.) Plaintiffs allege Defendant is liable to them for wrongful foreclosure for the same conduct alleged in their HBOR claim. Therefore, Plaintiffs claim for wrongful foreclosure fails on the same grounds as those stated above. Additionally, Plaintiffs do not allege they tendered or attempted to tender the amount owed on the loan at any time. Accordingly, the demurrer to the fourth cause of action is SUSTAINED. Fifth Cause of Action – Unfair Business Practices The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (<i>Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.</i> (1999) 20 Cal.4th 163, 180.) By proscribing “any unlawful” business practice, section 17200 “borrows” violations of other laws and treats them as unlawful practices that the UCL makes independently actionable. “Virtually any law or regulation - federal or state, statutory or common law - can serve as predicate for a § 17200 ‘unlawful’ violation.” (<i>Paulus v. Bob Lynch Ford, Inc.</i> (2006) 139 Cal.App.4th 659, 681; see <i>Hale v. Sharp Healthcare</i> (2010) 183 Cal. App. 4th 1373, 1382-1383.) “[A]n ‘unfair’ business practice occurs when it offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” [citations omitted.] In general the ‘unfairness’ prong ‘has been used to enjoin deceptive or sharp

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		practices....” (<i>South Bay Chevrolet v. General Motors Acceptance Corp.</i> (1999) 72 Cal.App.4th 861, 886-887.) Plaintiffs UCL claim rests on the same allegations underlying their other causes of action. Given that the demurrer to the first cause of action has been sustained, the demurrer to this cause of action should also be sustained as Plaintiff has not alleged unlawful conduct for purposes of the UCL. Plaintiff’s allegation that Defendant’s “failure to provide accurate payment information, misdirection of payments, imposition of unwarranted fees, and pursuit of foreclosure based on a default it created” was “immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers” is not supported by any factual allegations. Accordingly, the demurrer to the fifth cause of action is SUSTAINED. Sixth Cause of Action – Declaratory and Injunctive Relief Injunctive and declaratory relief are equitable remedies, not causes of action. (<i>Faunce v. Cate</i> (2013) 222 Cal.App.4th 166, 173.) A demurrer to causes of action for injunctive and declaratory relief will be sustained where such causes of action are “wholly derivative of other nonviable causes of action.” (Ibid.) Because the demurrer to the other causes of action has been sustained, Plaintiffs have not demonstrated they are entitled to such relief. Accordingly, the demurer to the sixth cause of action is SUSTAINED. The demurrer is SUSTAINED in its entirety with leave to amend. Plaintiffs have 15 days leave to amend the Complaint. Moving party shall give notice of this ruling.
57.		
58.	TALG, LTD. v. Ton 2026- 01552440	Plaintiffs TALG, Ltd. and Tenny C. Rostomian-Amin’s unopposed Motion to Strike Certain Portions of Defendant Alessandria Jones Ton’s Second Answer is GRANTED. (C.C.P. § 436.) Plaintiffs seek to strike the following the following portions from the Second Answer. (ROA 37.)

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		1. The Fifth Affirmative Defense, entitled "ANTI-SLAPP – CCP § 425.16," including Defendant's requests for dismissal of the Complaint, a determination that Plaintiffs cannot establish a probability of prevailing, and attorney's fees and costs under Code of Civil Procedure section 425.16; 2. The Sixth Affirmative Defense, to the extent it alleges that Plaintiffs failed to plead actual malice, that Plaintiffs' allegations are conclusory, or that Plaintiffs cannot satisfy an essential element of their claims; 3. The Seventh Affirmative Defense, entitled "TRADE LIBEL – FAILURE TO PLEAD SPECIAL DAMAGES," to the extent it alleges that Plaintiffs failed to identify lost clients, transactions, quantified damages, or special damages; and 4. The Eighth Affirmative Defense, entitled "PRIVILEGE – CIVIL CODE § 47," because it does not allege facts showing that the alleged public Yelp publication was made in a legislative proceeding, judicial proceeding, official proceeding authorized by law, or in the initiation or course of another qualifying proceeding. Plaintiff has properly established that the subject language should be stricken under C.C.P. § 436 as either (a) improper or (b) not drawn in conformity with law. As it relates to the Fifth Affirmative Defense, defendant must file a separate motion under C.C.P. § 425.16 (which defendant has done—see ROA 44). Defendant has not opposed the motion to strike. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue").) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (Rules of Court, Rule 3.1113(a).) Accordingly, the motion is GRANTED with 15 days leave to amend related to the Sixth, Seventh, and Eighth Affirmative Defenses, and GRANTED WITHOUT LEAVE to amend as to the Fifth Affirmative Defense. The case management conference is continued to February 1, 2027 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.

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59.	Contreras v. Cotty Foods Corporation 2026-01568744	Defendant Cotti Foods Corporation's Motion to Quash Service of Summons and Complaint is GRANTED. (Code Civ. Proc. §418.10.) A motion to quash is available where the plaintiff has not achieved valid service of summons on a defendant because until valid service of a valid summons has been made, the court lacks jurisdiction over the defendant. (See Code Civ. Proc. §418.10, subd. (a)(1); see also <i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371.) When a defendant moves to quash service, the burden is on the plaintiff to establish jurisdiction by a preponderance of the evidence. (<i>School Dist. of Okaloosa County v. Superior Court</i> (1997) 58 Cal.App.4th 1126, 1131.) Plaintiff has failed to establish that the summons and complaint were served upon defendant in compliance with the requirements of Code Civ. Proc. §415.10, et seq. Plaintiff's proof of service of summons has errors and inconsistencies. It appears from what plaintiff has filed that the only attempt at service of process has been by mailing the summons and complaint to defendant. Code Civ. Proc. §415.30 provides the requirements that must be followed in order to serve a defendant with the summons and complaint via mail. Plaintiff has failed to show compliance with Code Civ. Proc. §415.30. Additionally, the summons filed and issued on 5/11/26 (ROA 2) improperly identifies Julieta Contreras as a Defendant and Cotti Foods Corporation as the Plaintiff. Plaintiff shall file an amended summons that corrects the defects in the currently issued summons. Plaintiff shall then serve defendant in a manner consistent with Code Civ. Proc. §§ 415.10, 415.20, or 415.30 and file a valid proof of service of summons. Plaintiff is encouraged to consult with the court's self-help desk. Moving defendant shall provide notice of this ruling.
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61.	TandP LLC v. Evolve Bank & Trust	Defendant Luqra, LLC's motion for judgment on the pleadings is DENIED.

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	2024-01396459	<u>Standing</u>. Luqra challenges the second amended complaint (SAC) in its entirety on the ground that plaintiff TandP LLC lacks standing to bring any of its claims, arguing: “The SAC fails as a matter of law because TandP seeks to recover funds that, by its own allegations, were processed for and owed to nonparty third-party merchants[.] TandP, therefore, has incurred no damages, yet pleads damages allegedly belonging to others, not a legally cognizable injury of its own. [¶] ... [¶] Because TandP seeks to recover funds not owed to itself, but alleged to be owed to nonparty merchants, the SAC pleads an injury belonging to others and fails in its entirety for lack of standing.” (Mtn. P&As at pp. 7-8.) These contentions ignore the allegations of the SAC, which the court must take as true on a motion for judgment on the pleadings. (See <i>Sykora v. State Dept. of State Hospitals</i> (2014) 225 Cal.App.4th 1530, 1534.) The SAC alleges the existence of a contract and business relationship directly between plaintiff and defendants, by which plaintiff operated an e-wallet solution/program through plaintiff’s platform/account with defendants. Specifically, the SAC alleges defendants agreed to process credit card transactions for plaintiff’s e-wallet business, knowing plaintiff’s business involved allowing plaintiff’s third-party merchant customers to process credit card transactions through plaintiff’s e-wallet platform/account with defendants, and that Luqra assured plaintiff that this payment processing arrangement was legitimate and stable. (See SAC ¶¶ 9-13, 16-18, 29, 36-39.) The SAC further alleges that shortly after defendants began processing payments for plaintiff’s customers, defendants abruptly shut down plaintiff’s e-wallet platform and terminated the parties’ contract without proper notice based on a number of false assertions/accusations and improperly withheld \$1,444,069.06 of plaintiff’s funds without justification, which defendants have failed and refused to release to date. (See <i>id.</i> ¶¶ 14-17 [“Luqra’s January 2024 <i>statement for TandP</i> showed an ending balance of \$1,444,069.06”], 18 [“TandP has made numerous attempts to communicate with Luqra and Evolve regarding the status of <i>TandP’s funds</i>”], 19-21 [“TandP expressed TandP’s genuine concern that Luqra continues to hold \$1,444,069.06 of <i>TandP’s money</i>,” which TandP “owes” (i.e., is in turn obligated to pay) “to TandP’s third party merchants”], 22-24 [TandP reiterated its “grave concerns over Luqra’s and Evolve’s withholding of <i>TandP’s funds</i>” and “Luqra ... improperly block[ing] TandP’s ability even to log on and view <i>TandP’s account</i>”], 27 [“To date, Luqra or Evolve

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		continue to hold <i>TandP's funds</i> without any legal justification."], 28-39.) As one of the parties to the contract and business relationship at issue, plaintiff has the standing to sue on the same. (See <i>Berclain America Latina v. Baan Co.</i> (1999) 74 Cal.App.4th 401, 405; see also <i>City of Brentwood v. Campbell</i> (2015) 237 Cal.App.4th 488, 504 [the real party in interest "is the person who possesses the right to sue under the substantive law involved"].) As the direct victim of Luqra's alleged wrongful conduct, plaintiff has the standing for the harm sustained as a result of that conduct. (See <i>Torres v. City of Yorba Linda</i> (1993) 13 Cal.App.4th 1035, 1041, 1046 [generally, plaintiffs have standing to sue if they have either suffered or are threatened with an injury of sufficient magnitude to reasonably assure the relevant facts and issues will be adequately presented, i.e., when they can show "a personal interest in the litigation's outcome"]; <i>Bilafer v. Bilafer</i> (2008) 161 Cal.App.4th 363, 370.) And the SAC alleges in no uncertain terms that it is plaintiff who has suffered that harm and resulting damages. (See, e.g., SAC ¶¶ 9-24, 27-39.) The mere fact that defendants' conduct has also exposed plaintiff to liability to plaintiff's customers does not somehow render defendants' obligations and liability to plaintiff obsolete, and Luqra has failed to cite to any authority suggesting otherwise. <u>1st, 3rd, & 4th causes of action for breach of contract, conversion, and unfair competition.</u> Contrary to Luqra's contentions, the SAC alleges that plaintiff has suffered damages, including the loss of money, as a result of defendant's conduct. (See SAC ¶¶ 9-24, 27-34, 46-51, 53; see also <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements of breach of contract include, inter alia, damages]; <i>Voris v. Lampert</i> (2019) 7 Cal.5th 1141, 1150 [elements of conversion include, inter alia, damages]; Bus. & Prof. Code § 17204 [a private plaintiff has UCL standing only if it "has suffered injury in fact and has lost money or property"].) <u>2nd cause of action for fraud.</u> The SAC states facts sufficient to constitute the second cause of action for fraud. (See <i>Conroy v. Regents of University of California</i> (2009) 45 Cal.4th 1244, 1255 [elements]; see also SAC ¶¶ 9-10, 36-39 [misrepresentations of existing fact], 40-43.) <u>5th cause of action for civil conspiracy.</u> The SAC adequately alleges an underlying tort and the conspiracy to commit that

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		tort. (See CACI No. 3600 [civil conspiracy elements]; <i>Mosier v. Southern California Physicians Insurance Exchange</i> (1998) 63 Cal.App.4th 1022, 1048; <i>Voris v. Lampert, supra</i>, 7 Cal.5th at p. 1150 [conversion is a tort]; see also SAC ¶¶ 13-20, 22-24, 26-27, 32, 45-51, 58, 59(g), 60-61.) <u>Request for judicial notice.</u> Luqra's request for judicial notice is DENIED. Luqra relies on the subject discovery responses as evidence, rather than to contradict a material allegation of the SAC. (See, e.g., Mtn. Memo. P&As at pp. 7:23-25, 8:2-6, 8:9-10, 8:19-20, 9:12-13, 9:21-23.) Drawing factual inferences from discovery responses is not a proper use of judicial notice on a pleading challenge. (<i>Bounds v. Superior Court</i> (2014) 229 Cal.App.4th 468, 477-478 [denying request to take judicial notice of discovery responses]; <i>Williams v. Southern California Gas Co.</i> (2009) 176 Cal.App.4th 591, 599-600.) " '[T]he hearing on demurrer [or similar pleading challenge] may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of ... such material' on the ground it 'purports to contradict the allegations and contentions of the plaintiff.' [Citation.]" (<i>Bounds v. Superior Court</i>, at p. 477.) Luqra shall give notice of this ruling.
62.	Faiella v. City of Huntington Beach 2024- 01434420	Defendant City of Huntington Beach's motion for summary judgment as to the claims of Jennifer Dawn Faiella is DENIED. City has met its initial burden of proof by producing sufficient evidence to establish that Faiella's action has no merit, that Faiella cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. <i>C.C.P.</i> § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287. However, Faiella has met her now shifted burden to produce evidence to show that a triable issue of fact, or issues of fact, exist. <i>C.C.P.</i> § 437c (p) (2), and <i>Green v. Ralee Engineering Co.</i> (1998) 19 Cal.4th 66, 72. Specifically, there are triable issues of fact as to whether City had constructive notice of the alleged dangerous condition of the sidewalk. There are triable issues of fact as to UMF 4, 5 and Faiella's additional material facts 4, 7, 8, 9, 10, 11 and 13. Faiella's objections asserted in the Separate Statement are OVERRULED. California Rules of Court, rule 3.1354 provides that all written objections to evidence must be served and filed separately from the other papers in support of or in

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		opposition to the motion. While objections to specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, the objections must not be restated or reargued in the separate statement. Rule 3.1354. The court did not consider the late filed reply papers. "A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." Code Civ. Proc., § 437c(b)(4). The reply papers were filed on August 12, 2026, 5 days before the date of the hearing. Moving party has provided no justification for this, and therefore the court cannot find good cause. Defendant City to give notice of this ruling.
63.	Stamen v. OC Home Buyers, LLC 2025-01529001	Plaintiffs Jed Hunter Stamen and Michael H. Leifer's motion for summary judgment is DENIED. Plaintiffs have failed to meet their initial burden to prove each element of their sole cause of action for breach of contract. (Code Civ. Proc., § 437c, subd. (p)(1) [burden]; see <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [burden]; <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements for breach of contract]; <i>Darbun Enterprises, Inc. v. San Fernando Community Hospital</i> (2015) 239 Cal.App.4th 399, 409, fn. 5 (<i>Darbun Enterprises</i>) [elements for specific performance].) The complaint alleges a single cause of action for breach of a written real estate purchase and sale agreement (PSA) entered into between plaintiffs as the "buyer" and defendant OC Home Buyers, LLC as the "seller" for the property located at 104 Avenida San Pablo, San Clemente, CA 92672 (Compl. ¶¶ 9-15, Ex. A), seeking both specific performance and damages. (<i>Id.</i> ¶¶ 14-15 & prayer at ¶¶ 1-2.) As an initial matter, specific performance and damages are alternative remedies for breach of contract. (See <i>Mycogen Corp. v. Monsanto Co.</i> (2002) 28 Cal.4th 888, 905 ["a party may not obtain both specific performance and damages for the same breach of contract"]; <i>Darbun Enterprises, supra</i>, 239 Cal.App.4th at p. 409 ["A plaintiff may seek specific performance, an equitable remedy, as an alternative to damages, but a plaintiff may not receive both for breach of contract to the extent such an award would constitute a

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		double recovery”]; <i>Rogers v. Davis</i> (1994) 28 Cal.App.4th 1215, 1220-1221 [same].) Plaintiffs have failed to identify which of the two alternative judgments they seek by this motion and have further failed to meet their initial burden as to either form of relief in any event. To the extent plaintiffs are seeking a judgment of legal damages, plaintiffs have failed to demonstrate they performed and/or were excused from performing their obligations under the PSA, and have further failed to demonstrate any amount of damages. (Code Civ. Proc., § 437c, subd. (p)(1) [burden]; <i>Oasis West Realty, LLC v. Goldman, supra</i>, 51 Cal.4th at p. 821 [elements for breach of contract]; <i>Paramount Petroleum Corp. v. Superior Court</i> (2014) 227 Cal.App.4th 226, 241 [with respect to the element of damages, plaintiffs must show both the fact and the precise amount of damages caused by the breach]; <i>CDF Firefighters v. Maldonado</i> (2008) 158 Cal.App.4th 1226, 1239 [same]; <i>Parsons v. Estenson Logistics, LLC</i> (2022) 86 Cal.App.5th 1260, 1265, fn. 5 [“ ‘[A]ll material facts must be set forth in the separate statement. “This is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, <i>it does not exist.</i>” ’ ”]; see also Leifer Decl. ¶¶ 2, 5, Ex. A [PSA at ¶ 4, requiring payment of the full purchase price into escrow at or before closing]; Mtn. Sep. Stmt., in passim.) To the extent plaintiffs are seeking a judgment of specific performance, plaintiffs have failed to demonstrate they performed and/or were excused from performing their obligations under the PSA. (See <i>Darbun Enterprises, supra</i>, 239 Cal.App.4th at p. 409, fn. 5 [elements for specific performance]; see also Pl. Sep. Stmt., in passim.) Plaintiffs have also failed to show “the terms [are] sufficiently certain ‘to make the precise act which is to be done clearly ascertainable.’ [Citation.]” (<i>Darbun Enterprises, supra</i>, 239 Cal.App.4th at p. 409; see Civ. Code, § 3390, subd. (e).) Plaintiffs state that the PSA requires defendant to provide plaintiffs with “good and marketable title, free and clear of all liens and/or encumbrances,” and that defendant has failed to transfer this title to plaintiffs as the City of San Clemente has recorded a lis pendens against the property. (See Mtn. P&As at pp. 7-8, 10-11, 12; Pl. SSMF Nos. 2-6; see also Pl. RJN at Ex. A [City’s notice of pendency of nuisance abatement action (lis pendens) recorded 9/22/25].)

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		But given the lis pendens, simply ordering defendant to provide “good and marketable title, free and clear of all liens and/or encumbrances” is inadequate to precisely describe defendant’s obligations. As plaintiffs acknowledge, providing “good and marketable title, free and clear of all liens and/or encumbrances” in this instance involves requiring defendant to obtain an order “expung[ing] the [City’s] Lis Pendens” and/or otherwise “obtain[] the City’s withdrawal or release of the Lis Pendens.” (Mtn. P&As at p. 9.) The lis pendens, however, was recorded with respect to the City’s nuisance abatement action regarding numerous unabated “substandard” conditions at the property, including, inter alia, broken window/door screens, mold growth throughout the entire property, dilapidated fencing, dilapidated roofing and exterior walls, dilapidated pavement and walkways, dilapidated rain gutters, improper drainpipes, exposed electrical outlet and light fixtures, chipped/cracked exterior paint, an unstable landing and stair deck, “dangerous construction throughout the laundry room and [an] unpermitted unit” of the property, an exposed sewer line, an improperly installed gas line, “unpermitted plumbing and unpermitted construction in the bathroom,” an improperly installed toilet, the “accumulation of junk, trash and debris” at the property, among multiple other conditions. (Pl. RJN at Ex. A [lis pendens].) Arguably, this means defendant would have to correct all these substandard conditions at the property to obtain the City’s release of the lis pendens and deliver title free and clear to plaintiffs, even though plaintiffs agreed to purchase the property in “AS-IS condition, without any warranties or guarantees from [defendant] as to [the] physical condition of the Property other than marketable and good title,” and also explicitly “agree[d] to accept the Property in its present physical condition, including any trash, debris, or remaining personal property located thereon at the time of closing.” (Leifer Decl. at Ex. A [PSA ¶ 4].) Plaintiffs fail to explain or show how the PSA can be reasonably interpreted to require defendant to correct the physical condition of the property that plaintiffs explicitly agreed to accept “as is,” as part of defendant’s obligation to provide free and clear title. (See Civ. Code, §§ 1636 [a contract is interpreted so as to give effect to the mutual intent of the contracting parties at the time the contract was formed], 1641 [a contract is read as a whole, “so as to give effect to every part, if reasonably practicable, each clause

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		helping to interpret the other”]; <i>MacKinnon v. Truck Ins. Exchange</i> (2003) 31 Cal.4th 635, 647 [“` “The fundamental rules of contract interpretation are based on the premise that the interpretation of a contract must give effect to the “mutual intention” of the parties’ ”]; <i>Coral Farms, L.P. v. Mahony</i> (2021) 63 Cal.App.5th 719, 727 [“Contracts `are construed to avoid rendering terms surplusage’ ”]; see also <i>Food Pro Internat., Inc. v. Farmers Ins. Exchange</i> (2008) 169 Cal.App.4th 976, 986 [rejecting the interpretation of an “exclusion so broadly the exception swallows the rule”].) Where, as here, “the terms of [an agreement] are not sufficiently certain to make the precise act which is to be done clearly ascertainable,” the agreement “cannot be specifically enforced....” (Civ. Code, § 3390, subd. (e).) <u>Request for judicial notice.</u> Plaintiffs’ requests for judicial notice of the City of San Clemente’s notice of pendency of action (lis pendens), the grant deed for the subject property (ROA No. 36 [Pl. RJN at Exs. A-B]), and defendant’s answer to complaint (ROA No. 54 [Pl. Reply RJN at Ex. A]) are GRANTED. (See Evid. Code, § 452, subd. (d); <i>Yvanova v. New Century Mortg. Corp.</i> (2016) 62 Cal.4th 919, 924, fn. 1 [court may take judicial notice of the existence and contents of recorded documents, though not of disputed or disputable facts stated therein].) Plaintiffs’ request for judicial notice of the property detail report (ROA No. 36 [Pl. RJN at Ex. C]) is DENIED. (See <i>Travelers Indemnity Company of Connecticut v. Navigators Specialty Insurance Company</i> (2021) 70 Cal.App.5th 341, 354-355 [matters in private party documents are not facts that are not reasonably subject to dispute and that can be determined by indisputable accuracy].) <u>Objections.</u> The court declines to rule on plaintiffs’ objections to defendant’s evidence (ROA No. 56), as they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) Plaintiffs shall give notice of this ruling.
64.		
65.		

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